

## Intentional Torts Against the Person

- **Battery Does Not Require Malice or Hostility:** Battery requires only an intentional act that brings about a harmful or offensive contact without consent; personal hatred, spite, or ill will is completely unnecessary.
  - *Example:* A boy plays a practical joke on his babysitter by swinging a toy sword near her without intending real harm; if the blade detaches and strikes her head, he is liable for battery regardless of his friendly motives.
- **Battery Extends to Objects Intimately Connected to the Person:** Contact with clothing, a cane, an umbrella, or an object held in the victim's hand satisfies the physical contact element of battery.
  - *Example:* A shooter fires a bullet intending only to frighten an acquaintance, but the bullet shatters the coffee cup held in the victim's hand; the shooter has committed battery.
- **Medical Battery via Lack of Consent (Identity Errors):** Performing a surgery without a patient's consent constitutes battery as a matter of law, even if the surgeon acted in good faith or was misdirected by hospital administrative staff.
  - *Example:* A surgeon scheduled to operate on Patient A's back is taken by mistake to Patient B's room and performs an appendectomy; the surgeon is liable for battery.
- **Informed Consent Omissions Sound in Negligence, Not Battery:** Performing a procedure without any consent is battery; performing an agreed procedure without fully explaining rare risks or side effects sounds in negligence/malpractice.
  - *Example:* A surgeon properly performs an agreed knee replacement but forgets to disclose a 1% risk of permanent stiffness; the claim is for medical negligence, not intentional battery.
- **Assault Requires Reasonable Apprehension of Imminent Harm:** Assault requires an intentional overt physical act that places the plaintiff in reasonable apprehension of immediate bodily contact; words alone without an overt gesture do not qualify.
  - *Example:* An angry caller threatens over the telephone that a homeowner's children will be hurt in the future if a contract is not canceled; this is not an assault because it lacks an immediate, present overt act.
- **Apprehension vs. Fear in Assault:** The plaintiff does not need to experience fear; they only need to perceive that immediate contact is about to occur.
  - *Example:* A heavyweight boxer sees an elderly man swing a punch at his jaw and steps back; even if the boxer was not frightened, he perceived imminent contact, satisfying the apprehension element.
- **Transferred Intent Across Torts and Victims:** Under transferred intent, intending one of the five traditional intentional torts (battery, assault, false imprisonment, trespass to land, trespass to chattels) transfers to any resulting tort or unexpected victim.
  - *Example:* A brother swings a sword to frighten his babysitter (assault), and the blade flies off toward his sister who ducks in terror; the intent transfers to make him liable for assault against the sister.
- **False Imprisonment Requires Intent to Confine:** Confinement caused by ordinary negligence, accident, or an unintended mechanical failure does not support a claim for false imprisonment.

- *Example:* An angry visitor violently slams an office door, causing the lock to jam and trapping the occupant until a locksmith arrives the next day; the visitor is not liable for false imprisonment because he did not intend to confine the occupant.
- **Awareness or Harm Required for False Imprisonment:** The plaintiff must either be conscious of the confinement while it happens or suffer actual physical harm from it.
  - *Example:* A store clerk accidentally locks a sleeping infant inside a storage closet for 10 minutes; if the infant sleeps through the entire ordeal and suffers no physical injury, no false imprisonment claim lies.
- **Presence of a Reasonable Means of Escape:** If the plaintiff knows of a safe, reasonable, and readily accessible way out, they are not confined to a bounded area.
  - *Example:* A coworker locks the main front exit door of a ground-floor office, but an unlocked, clearly marked side exit leading to the public street remains open; no false imprisonment has occurred.
- **Intentional Infliction of Emotional Distress (IIED):** IIED requires extreme and outrageous conduct that intentionally or recklessly causes severe emotional distress, exceeding all bounds of decency tolerated by a civilized society.
  - *Example:* A restaurant operates a late-night service window until 2 AM that attracts noisy crowds and profane language; while disruptive to neighbors, this does not meet the high legal threshold for IIED.

## Defenses to Intentional Torts

- **Consent in Sports and Mutual Fights:** Voluntarily participating in a contact sport or mutual fight implies consent to customary, foreseeable physical contact, barring battery unless the defendant used excessive, disproportionate force.
  - *Example:* A 10-year-old kicks a 9-year-old in the leg during a recess playground fight, breaking a bone; the kicker is not liable for battery unless the force used exceeded what is customary in a children's scuffle.
- **Excessive Force Defeats Self-Defense:** Self-defense permits only force reasonably proportionate to the perceived threat; responding to an unarmed attacker with deadly weapons constitutes excessive force and is an actionable battery.
  - *Example:* A person mistakenly believes an unarmed man shot him, grabs an iron bar, and beats him over the head; he cannot claim self-defense because striking an unarmed person with an iron bar is excessive deadly force.
- **Non-Deadly Initial Aggressors Regain Self-Defense Upon Escalation:** An initial aggressor who uses non-deadly force regains the privilege to use deadly self-defense if the victim escalates the fight with unlawful deadly force and safe retreat is impossible.
  - *Example:* A driver slaps a security guard, who responds by drawing and loading a pistol; because the guard escalated to lethal force and the driver cannot safely escape, the driver is privileged to use a knife in self-defense.

- **Prohibition on Deadly Mechanical Traps to Defend Property:** A property owner can use reasonable non-deadly force to deter trespassers, but cannot use mechanical devices designed to inflict death or serious bodily injury.
  - *Example:* A collector installs a mild shock device on his car to deter tampering, which accidentally triggers a trespasser's fatal pacemaker failure; the owner is not liable because the force was non-deadly and reasonable.
- **Shopkeeper's Privilege:** A merchant who reasonably suspects a person of shoplifting is privileged to detain them for a reasonable time and in a reasonable manner to investigate.
  - *Example:* A department store security guard spots a shopper slipping jewelry into her pocket and detains her in an office for 15 minutes until police arrive; the merchant is shielded from false imprisonment.
- **Private Necessity Grants a Qualified Privilege:** An emergency entry onto another's property to prevent serious harm to person or property is privileged, protecting the actor from trespass liability, but the actor remains strictly liable for actual physical damage caused.
  - *Example:* A rescuer runs into an apartment lobby to use a telephone to call an ambulance for an injured pedestrian hit by a car; her entry is privileged against trespass.

## Intentional Torts Against Property

- **Trespass to Land vs. Nuisance:** Trespass to land requires a physical invasion of real property by a person or tangible object; intangible intrusions like noise, vibrations, bright lights, or odors sound in nuisance.
  - *Example:* Late-night restaurant patrons congregate outside making loud noise and smoking; the neighboring homeowner must sue for nuisance rather than trespass to land because no physical entry occurred.
- **Trespass to Land Requires Only Intent to Enter:** The defendant need only intend to walk or drive onto the specific piece of land; mistakenly believing they own the land or have permission is no defense.
  - *Example:* A hiker honestly believes he is on public park property while walking across a clearly marked private ranch; he is liable for nominal damages in trespass to land.
- **Mistake of Fact Is No Defense to Conversion or Trespass to Chattels:** In trespass to chattels and conversion, an honest, reasonable, or good-faith mistake regarding property ownership does not defeat liability.
  - *Example:* Hunters shoot and kill a dog that looks identical to a wild wolf, honestly and reasonably believing it is game; they are strictly liable to the farmer for conversion.
- **Conversion by Bailees and Innocent Purchasers:** A bailee who sells bailed property converts it, and an innocent buyer who purchases and exercises control over the converted property is also liable for conversion.
  - *Example:* A repair shop sells a customer's television to a buyer who believes the shop owns it; the true owner can recover for conversion against both the repair shop and the innocent buyer.
- **Bailee Presumption of Conversion Upon Demand:** A commercial bailee who fails or refuses to redeliver bailed property upon the owner's rightful demand is presumed liable for conversion at Common Law.

- *Example:* A driver parks his car in a commercial lot, and the lot owner cannot return it upon demand because a thief stole it; the car owner establishes a prima facie conversion claim.

## Negligence: Duty & Special Relationships

- **No General Affirmative Duty to Rescue:** A person owes no affirmative legal duty to rescue or assist a stranger in peril, absent a special relationship, a statute, or conduct by the defendant creating the peril.
  - *Example:* A motorboat operator spots a disabled sailboat drifting in a lake; the motorboat operator has no legal duty to tow the boat, even if the sailor falls ill from exposure.
- **Duty Arises Once Rescue Begins:** One who voluntarily begins a rescue must exercise reasonable care and cannot leave the victim in a worse position.
  - *Example:* A passerby pulls a drowning swimmer halfway onto the riverbank, then abandons him facedown in shallow water; the rescuer is liable for negligence.
- **Special Duty of Business Proprietors to Aid Invitees:** A business proprietor owes an affirmative duty of reasonable care to provide prompt, reasonable aid to invitees injured on its premises.
  - *Example:* A child gets his hand caught in an escalator; the store is liable if its employee acts negligently during the rescue attempt.
- **Landlord Notice Requirement for Common Area Hazards:** A landlord is liable for injuries caused by hazards in common areas only if the landlord had actual or constructive notice in time to discover and correct the danger.
  - *Example:* A pedestrian runs into an apartment building and trips over a skateboard left on the stairs by a tenant just minutes earlier; the landlord is not liable because it lacked constructive notice.
- **Direct Liability for Negligent Hiring of Independent Contractors:** An employer is not vicariously liable for an independent contractor's torts, but is directly liable for its own negligence in hiring an incompetent or unfit contractor.
  - *Example:* A hotel hires an electrician without checking his background, ignoring extensive public citations for dangerous work; the hotel is directly liable for its own negligent hiring when a guest is shocked.
- **School District Supervision Standard:** A school district is not strictly liable for pupil injuries, but owes a duty of ordinary, reasonable care to provide adequate supervision on school grounds.
  - *Example:* Two fourth-graders fight during recess; the school district is liable for the resulting injury only if school staff failed to exercise reasonable care in supervising the yard.
- **Municipal Sewer Line Maintenance Governed by Negligence:** Operating a public water or storm sewer system is a routine municipal utility governed by negligence, not strict liability or nuisance.
  - *Example:* A city storm sewer line bursts and floods a homeowner's basement; the city is liable only if the pipe was negligently constructed or maintained.
- **The Emergency Doctrine Standard of Care:** An actor confronted with a sudden, unexpected emergency not of their own making is held to the standard of a reasonably prudent person facing that same emergency.

- *Example:* A pedestrian pushes a child out of the path of a speeding car, skinning the child's knees; the pedestrian is not liable in negligence because her response was reasonable in an emergency.
- **Child Standard of Care:** A child's conduct is evaluated against a reasonable child of like age, intelligence, and experience, unless the child is engaging in an adult activity.
  - *Example:* A 13-year-old dashes up stairs to find a telephone to call an ambulance for an injured pedestrian and trips; her lookout is judged against a reasonable 13-year-old in an emergency.
- **Adult Activities by Children Invoke Adult Standard:** When a minor engages in an inherently dangerous adult activity (like driving a car, flying an airplane, or operating a motorboat), they are held to the adult reasonable person standard.
  - *Example:* A 15-year-old driving a pickup truck on a public road rear-ends another vehicle; he is held to the standard of an ordinary adult driver, not a 15-year-old.
- **Professionals Held to National Industry Standard:** Doctors, lawyers, and certified professionals must exercise the knowledge, skill, and care ordinarily possessed by members of their profession in good standing.
  - *Example:* A surgeon fails to order routine pre-operative blood work required by prevailing medical standards; the surgeon's conduct is measured against national medical practices.

### Negligence: Breach, Res Ipsa & Statutory Standards

- **Res Ipsa Loquitur (Inference of Negligence):** Negligence is inferred under res ipsa loquitur when the event does not ordinarily occur without negligence, the instrumentality was in the defendant's exclusive control, and the plaintiff did not contribute to it.
  - *Example:* Hospital staff delivers two surgeons into the wrong operating rooms, resulting in operations on the wrong patients; the hospital is liable for administrative negligence under res ipsa loquitur.
- **Negligence Per Se Requires Causation-in-Fact:** Violating a safety statute establishes breach of duty, but the plaintiff must still prove the violation was the cause-in-fact ("but-for" cause) of the injury.
  - *Example:* A motel fails to post a statutory "No Lifeguard" warning sign, and a guest drowns; the motel prevails if there is no proof that a posted sign would have kept the guest from swimming.
- **Negligence Per Se Limited to Protected Class and Intended Hazard:** Negligence per se applies only if the statute was intended to protect against the specific type of accident that occurred and the plaintiff belongs to the protected class.
  - *Example:* A driver washes her car on a public street during rush hour in violation of an ordinance passed solely to expedite traffic; a pedestrian who slips on ice formed by the wash water cannot use negligence per se.
- **Statutory Violations Unrelated to Physical Causation:** A defendant whose statutory violation played no physical causal role in the collapse or collision is not liable under negligence per se.
  - *Example:* A truck weighing 30,000 lbs travels 40 mph on a bridge posted for 25 mph, and the bridge collapses; if the bridge was more likely to collapse at speeds under 25 mph, the speed violation was not a cause-in-fact.

- **Licensing and Insurance Statutes Do Not Establish Negligence Per Se:** Operating without a required license or liability insurance policy does not establish negligence per se because lack of paperwork does not physically cause an accident.
  - *Example:* An uninsured limousine driver swerves to avoid a dog and crashes into a tree; his violation of an insurance statute does not establish negligence per se.

### Negligence: Causation & Defenses

- **Proximate Cause Requires Foreseeability (*Palsgraf*):** Proximate cause requires that the plaintiff and injury be within the foreseeable scope of risk created by the defendant's conduct.
  - *Example:* Target shooting in a field frightens a leashed dog, which breaks its leash and bites an unrelated passerby 100 feet away; the shooter is not liable because a dog bite was outside the foreseeable risk of target shooting.
- **The Rescue Doctrine ("Danger Invites Rescue"):** A tortfeasor who negligently creates a peril is liable for injuries sustained by a foreseeable rescuer while attempting to render aid.
  - *Example:* A speeding driver strikes a pedestrian, causing a rescuer to dash upstairs for emergency aid and trip over a skateboard; the speeding driver is the proximate cause of the rescuer's broken ankle.
- **Subsequent Ambulance Crashes Are Foreseeable:** An original tortfeasor remains liable for the death of an accident victim killed in an ambulance crash on the way to the hospital because emergency transit is a foreseeable intervening risk.
  - *Example:* A negligent snowmobile driver injures a passenger, and the speeding ambulance crashes into a utility pole, killing the passenger; the snowmobile driver is liable for the death.
- **Medical Malpractice Is a Foreseeable Intervening Force:** Subsequent negligent medical treatment rendered to an injured plaintiff is a foreseeable intervening force; the original tortfeasor remains liable for the aggravated injuries.
  - *Example:* A driver negligently breaks a pedestrian's leg; the treating surgeon sets the bone improperly, requiring surgery to re-break it; the driver is liable for the entire resulting injury.
- **Ordinary Road Imperfections (Potholes) Are Not Superseding:** Hitting an ordinary, prevalent road defect (like a pothole) while speeding is a foreseeable concurring force that does not break proximate cause.
  - *Example:* A speeding driver hits a pothole and loses control, crashing into another car; the pothole is a foreseeable concurring hazard, not an extraordinary superseding cause.
- **Eggshell Skull (Thin Skull) Plaintiff Rule:** A tortfeasor takes the victim as found; if tortious conduct inflicts bodily injury, the defendant is liable for all aggravated injuries resulting from an unforeseen pre-existing physical condition.
  - *Example:* A negligently flown drone strikes a woman, causing a fall that disconnects her optic nerves due to a rare pre-existing condition and blinds her; the drone operator is liable for the blindness.

- **Assumption of Risk Requires Subjective Knowledge:** Assumption of risk requires actual subjective knowledge and appreciation of the specific danger; constructive knowledge ("should have seen it") shows contributory negligence, not assumption of risk.
  - *Example:* A rescuer running up stairs does not notice a skateboard on the landing and trips; she did not assume the risk because she lacked subjective awareness of the obstacle.
- **Parental Negligence Not Imputed to Children:** Negligence by a parent in supervising a child is not imputed to the child to bar or reduce the child's own recovery against a third-party tortfeasor.
  - *Example:* A mother turns her back in a department store while her 4-year-old wanders toward an escalator; the mother's lack of supervision does not bar the child's claim against the store.

### Emotional Distress (NIED)

- **Bystander NIED (Sensory and Contemporaneous Perception):** A bystander claiming Negligent Infliction of Emotional Distress must be located near the scene, closely related to the victim, and contemporaneously perceive the accident sensory-wise.
  - *Example:* A wife goes sightseeing and returns to find her husband drowned in a motel pool; she cannot recover for NIED because she was not present to contemporaneously perceive the accident.
- **Zone of Danger NIED:** A direct plaintiff not hit by the physical impact can recover for NIED if they were in the physical "zone of danger" of impact and suffered physical symptoms of emotional distress.
  - *Example:* A speeding truck misses a pedestrian by three inches; the pedestrian suffers severe fright resulting in a heart attack; she can recover under the zone of danger doctrine.
- **Special Relationship NIED (No Physical Impact Needed):** NIED is actionable without physical impact or zone of danger in narrow exceptions involving mishandling of a corpse or erroneous notification of the death of a close family member.
  - *Example:* A hospital negligently calls a mother and falsely informs her that her healthy son died in a car crash; the mother can recover for NIED without being in physical peril.
- **Strict Products Liability Bars Pure Emotional Distress:** A bystander cannot recover under strict products liability for pure emotional shock unaccompanied by physical injury or physical manifestations.
  - *Example:* A friend stands a few feet away when a bicycle seat snaps, severely injuring the rider; the friend who is horrified but suffers no physical impact or injury cannot recover under strict liability.

### Strict Liability: Animals & Abnormally Dangerous Activities

- **Wild Animals Impose Strict Liability:** Owning or keeping a wild animal (like a cougar, bear, or wolf) imposes strict liability for injuries stemming from the animal's dangerous propensities, regardless of whether reasonable care was used.
  - *Example:* A cougar kept in a fenced yard springs against a deteriorated chain-link fence, causing it to collapse onto a pedestrian on the public sidewalk; the owner is strictly liable.
- **Domestic Animal "One-Bite" Rule (Scienter):** An owner of a domestic animal (like a dog or cat) is not strictly liable for bites or attacks unless the owner had prior knowledge or reason to know of the animal's vicious propensities.



- *Example:* A leashed domestic dog breaks its leash and bites a pedestrian; the owner is not liable without proof of negligence or knowledge that the dog had previously bitten someone.
- **Trespassing Livestock Imposes Strict Liability:** An owner of livestock (cattle, horses, sheep) is strictly liable for damage caused if the animals trespass onto another's land.
  - *Example:* A farmer's cows wander through a broken fence onto a neighbor's property and trample his prized flower garden; the farmer is strictly liable for the property damage.
- **Abnormally Dangerous Activities (Bulk Toxics and Escaped Gases):** Conducting an activity that creates a foreseeable, highly significant risk of physical harm that cannot be eliminated by reasonable care and is not of common usage imposes strict liability.
  - *Example:* A chemical plant stores bulk lethal gas that leaks and drifts half a mile to poison a resident; the plant is strictly liable because storing bulk toxic gas is abnormally dangerous.
- **Bulk Gasoline Transportation Is Abnormally Dangerous:** Transporting or parking large quantities of volatile, explosive gasoline on city streets constitutes an abnormally dangerous activity imposing strict liability for resulting explosions.
  - *Example:* A 35-foot delivery tanker carrying gasoline is hit by an out-of-control car and explodes; the distributor is strictly liable to an injured bank worker inside a nearby building.
- **Public Fireworks Displays Impose Strict Liability:** Operating a public fireworks exhibition is an abnormally dangerous activity imposing strict liability for injuries caused to spectators by errant fireworks without proof of negligence.
  - *Example:* A fireworks rocket fails to shoot upward and travels parallel to the ground, hitting an amusement park visitor; the park is strictly liable under the abnormally dangerous activity doctrine.
- **Harm Must Flow from the Abnormally Dangerous Propensity:** Strict liability applies only if the harm results from the specific risk that made the activity abnormally dangerous in the first place.
  - *Example:* A truck carrying dynamite carefully drives down a street and gently runs over a pedestrian's foot; strict liability does not apply because the injury did not result from an explosion.

## Products Liability

- **Strict Products Liability Chain of Commercial Distribution:** Every commercial seller in the stream of commerce—including retail dealers and wholesalers—is strictly liable for injuries caused by a product sold in a defective, unreasonably dangerous condition, even if the retailer was free from fault.
  - *Example:* A hardware store sells a bicycle with a latently defective seat support rod manufactured by Bikeco; the store is strictly liable to the injured rider even though the defect was undetectable.
- **Retailer Negligence Requires a Discoverable Defect:** In a negligence claim against a retailer of new goods, the retailer is liable only if the defect was discoverable through a reasonable, customary inspection.
  - *Example:* A retailer sells a boxed bicycle with a hidden metallurgical defect inside the seat rod; the retailer is not liable in negligence because a standard inspection would not reveal the latent defect.
- **Foreseeable Users and Misuses Protected:** Strict products liability protects all foreseeable users and foreseeable misuses of a product, not merely the original purchaser or target age group.



- *Example:* A 17-year-old sister walks her 7-year-old brother's bicycle across the garage and the seat rod snaps; the manufacturer is strictly liable because using the bike in that manner was foreseeable.
- **Design Defect Risk-Utility Test:** A product is defectively designed if the risks of the design outweigh its utility, and the danger could have been avoided by an economically feasible safer alternative design (RAD).
  - *Example:* A bicycle seat rod snaps because the manufacturer used cheap metal; proving that other manufacturers use stronger metal that would add only \$1.50 per bicycle establishes a design defect.
- **Failure to Warn and Unforeseeable Victims:** A manufacturer is not strictly liable for a failure to warn if the plaintiff was an unforeseeable bystander located outside the foreseeable zone of risk.
  - *Example:* A photographer pours toxic photo chemicals down a drain that leaks into a sewer pipe, sickening a resident half a mile away; the chemical maker is not liable because a resident that far away was unforeseeable.
- **Warning Causation Presumption Rebutted by Non-Readers:** The presumption that an adequate warning would have been read and heeded is rebutted if the plaintiff affirmatively admits that they never read product warnings.
  - *Example:* A skin cream omits a warning about skin discoloration, and the buyer's skin turns blue; the manufacturer is not liable for failure to warn because the buyer testified he never reads package warnings.
- **Known Defect Left Plugged In Is a Superseding Cause:** Leaving an appliance plugged in on a counter after being warned by the store that it is inherently dangerous breaks the chain of causation as an extraordinary intervening act.
  - *Example:* A buyer learns a food processor has an inherently dangerous vibration, but leaves it plugged in on the counter; her husband turns it on and it shatters, injuring a guest; the buyer's conduct is a superseding cause.
- **Driving with a Known Inoperable Safety Indicator:** A motorist who drives knowing a seatbelt warning light is broken assumes the risk of driving without the warning and cannot sue the dealer for its failure.
  - *Example:* A car dealer informs a buyer upon delivery that the seatbelt indicator light is inoperative; when the buyer drives without a seatbelt and gets injured, the dealer is not liable for the defective light.

## Defamation & Privacy

- **Defamation of Public Figures (Actual Malice):** A public figure cannot recover for defamation without proving by clear and convincing evidence that the statement was published with actual malice (knowledge of falsity or reckless disregard of the truth).
  - *Example:* A literary critic writes that a well-known author is dishonest in expressing her political views; the author cannot recover without proving the critic published with reckless disregard of the truth.

- **Private Figures Suing Media Require Negligence:** A private figure suing a media defendant over a matter of public concern must prove at least negligence; if the reporter exercised reasonable care in investigating, the claim fails.
  - *Example:* A television newscaster reports that a private school teacher is being fired for incompetence, having used reasonable care to verify the story; the newscaster is not liable even though the story was false.
- **Public Officials (Substantial Responsibility / Control):** Government employees who appear to exercise substantial responsibility or control over public affairs must prove actual malice to recover for defamation.
  - *Example:* A newspaper writes that city firefighters are out of shape and failed physicals; because the firefighters hold apparent control over public safety, the newspaper's lack of actual malice bars liability.
- **Small Group Defamation:** A defamatory statement directed at a small group allows each individual member to sue if the group is so small that a listener would understand it refers to every member.
  - *Example:* A newspaper prints that police present at a rally engaged in senseless brutality, when only four officers were present; each of the four officers can sue for defamation.
- **Large Group Defamation Banned:** If a defamatory statement is directed at a large group (e.g., "all lawyers are thieves"), no individual member has standing to sue.
  - *Example:* A blogger writes that all doctors in California overcharge patients; an individual doctor cannot sue because the group is too large for the statement to be "of and concerning" him.
- **Qualified Privilege for Employment References:** Statements made in good faith in response to an employment inquiry are protected by a qualified privilege, which is lost only upon proof of actual malice.
  - *Example:* A doctor writes on a hospital hiring questionnaire that he heard a nurse had once been accused of incompetence, reasonably relying on a trusted mentor; the doctor is protected by qualified privilege.
- **Commercial Misappropriation vs. Public Photos:** Publishing a celebrity's photo taken in a public place in an editorial article is protected news reporting, but using that same photo in an advertisement without consent is commercial appropriation.
  - *Example:* A beer maker reprints a magazine photo of a famous actor drinking beer at a cafe with the caption "Drink the beer movie stars drink"; the beer maker is liable for commercial misappropriation.
- **Commercial Appropriation by Distinctive Car Attributes:** Commercial misappropriation does not require naming the celebrity or showing their face if the advertisement uses unique, iconic attributes (like a distinctive race car) that identify the person.
  - *Example:* A cigarette ad features an unnamed race-car driver standing in front of a car with the exact custom markings of a famous driver; the driver can sue for commercial misappropriation.
- **Intrusion Upon Seclusion (Expectation of Privacy):** Intrusion upon seclusion requires an intentional intrusion into a private place or private affairs in a manner highly offensive to a reasonable person; observing someone in public spaces is not actionable.

- *Example:* A freelance photographer takes a photo of an actor sitting outside at a public sidewalk cafe; this is not an intrusion upon seclusion because the actor was in plain public view.
- **Public Disclosure of Private Facts:** Widespread public disclosure of private, non-newsworthy facts that are highly offensive to a reasonable person is actionable, but newsworthy publications are privileged.
  - *Example:* A newspaper prints a private citizen's confidential medical records showing psychiatric treatment; the citizen can sue for public disclosure of private facts.
- **False Light Privacy:** Publishing statements that place the plaintiff before the public in a false light that would be highly offensive to a reasonable person requires actual malice for public figures.
  - *Example:* A tabloid publishes a photo of an innocent pedestrian next to a headline about convicted bank robbers; the pedestrian can sue for false light.

## Nuisance, Joint Liability & Math Formulas

- **Private Nuisance (Substantial and Unreasonable Interference):** A private nuisance is a substantial, unreasonable interference with the plaintiff's use and enjoyment of real property, such as ongoing noise or disruptive crowds.
  - *Example:* A restaurant operates a late-night walk-up window until 2 AM that attracts loud, profane crowds every night; the adjacent homeowner can recover under private nuisance.
- **Public Nuisance Requires Special Harm for Private Suits:** A private citizen can sue for a public nuisance (like a zoning violation or community-wide odor) only if they suffered special harm different in kind from that of the general community.
  - *Example:* A rural billboard violates a local zoning ordinance; a neighboring property owner whose unique view of a lake is blocked suffers special harm and has standing to abate the nuisance.
- **Community-Wide Industrial Odors Are Public Nuisance:** An industrial plant whose manufacturing fumes create a bad smell across an entire farming county is a public nuisance; an individual farmer suffering the same smell as the community cannot sue for private nuisance.
  - *Example:* Insecticide factory fumes smell terrible across an entire agricultural county; an individual farmer who experiences the same discomfort as everyone else cannot recover damages.
- **No Contribution Among Joint Intentional Tortfeasors:** Under traditional Common Law rules, an intentional tortfeasor who pays a judgment cannot seek contribution or reimbursement from an accomplice.
  - *Example:* Two joyriders intentionally take an automobile and crash it into a truck, destroying it; the driver who pays a conversion judgment cannot compel the passenger to reimburse him.
- **Complete Indemnity for Innocent Sellers from Manufacturers:** A retailer or property owner held liable for a defective product without active fault is entitled to 100% indemnification from the active manufacturer.
  - *Example:* A department store pays a tort judgment to a child injured by an improperly designed escalator; the store can compel the escalator manufacturer to reimburse 100% of the payout, unless the store was actively negligent.

- **Vicarious Liability (Respondeat Superior) for Minor Detours:** An employer is vicariously liable for torts committed by employees within the scope of employment; a minor departure on personal errands is a "detour" that keeps the employer liable, while an extensive departure is a "frolic" that cuts off employer liability.
  - *Example:* A delivery driver drives two blocks off his designated route to buy coffee and hits a pedestrian; the employer is vicariously liable because this was a minor detour.
- **Employer Non-Liability for Independent Contractor Torts:** A principal is not vicariously liable for the torts of an independent contractor, unless the work involves non-delegable duties (premises safety for invitees) or inherently dangerous activities.
  - *Example:* A business hires an independent contractor to excavate near a public sidewalk; because excavating adjacent to public thoroughfares is inherently dangerous, the business remains vicariously liable for sidewalk cave-ins.
- **Benefit-of-the-Bargain Fraud Damages Formula:**

Damages = Value of Property as Represented – Actual Value of Property at Transfer

- *Math step:* Subtract the actual market value of the encumbered or defective property from what its value would have been had the seller's representation been completely true.
  - *Example:* A buyer pays \$50,000 for land that the vendor falsely claims is free of liens. The land is actually subject to a \$15,000 mortgage. If unencumbered, the land would have been worth \$70,000; with the mortgage, it is worth \$55,000. Benefit-of-the-bargain damages equal \$70,000 - \$55,000 = **\$15,000**.
- **Pure Comparative Negligence Formula:**

Plaintiff's Recovery = Total Proven Damages × (100% – Plaintiff's Percentage of Fault)

- *Math step:* Calculate total damages and reduce the recovery by the plaintiff's exact percentage of fault, even if the plaintiff is 90% at fault.
  - *Example:* A plaintiff suffers \$100,000 in damages in an auto crash and is found 60% at fault; in a pure comparative fault jurisdiction, the plaintiff recovers \$100,000 × (100% - 60%) = **\$40,000**.
- **Modified Comparative Negligence Formula (50% / 51% Bar Rules):**

$$\text{Recovery} = \begin{cases} \text{Total Damages} \times (100\% - \text{Plaintiff's Fault}), & \text{if Plaintiff's Fault} \leq 50\% \text{ (or } < 50\%) \\ \$0, & \text{if Plaintiff's Fault exceeds threshold} \end{cases}$$

- *Math step:* Check if the plaintiff's fault exceeds 50% (or equals 50% under the "less than" rule); if it does, award \$0; otherwise, apply the comparative offset.
  - *Example:* A plaintiff suffers \$100,000 in damages and is found 51% at fault; under a modified 50% bar system, the plaintiff recovers **\$0**.
- **Joint and Several Liability with Contribution Offsets:**

Contribution Right = Amount Paid to Plaintiff – (Defendant's Share of Comparative Fault × Total Judgment)

- *Math step:* When a jointly liable defendant pays the entire judgment, multiply their assigned fault percentage by the total verdict and subtract it from what they paid to find how much they can collect from the co-defendant.
- *Example:* Two drivers are jointly liable for a \$100,000 injury; Driver A is 30% at fault and Driver B is 70% at fault. If Driver A pays the entire \$100,000 to the plaintiff, Driver A can compel Driver B to contribute  $\$100,000 - (30\% \times \$100,000) = \textbf{\$70,000}$ .